

Feedback & Complaints Policy

VERSION 1.0	EFFECTIVE	NEXT REVIEW	OWNER Principal / Key Management Personnel	APPROVED BY Governing body
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PURPOSE AT A GLANCE

[] welcomes feedback, compliments and complaints from everyone. This policy explains how anyone can raise a concern — including anonymously — how we handle it fairly and quickly, and how people can also go to the NDIS Commission at any time. It gives effect to the *Feedback and Complaints Management* NDIS Practice Standard and the *NDIS (Complaints Management and Resolution) Rules 2018*.

1. Purpose and scope

This policy supports [] to apply the Feedback and Complaints Management NDIS Practice Standard. It sets out how [] maintains a complaints management and resolution system that is proportionate to the size and scale of the organisation and the complexity of the supports we deliver, and that follows the principles of procedural fairness and natural justice.

This policy applies to all services and supports delivered by []. All employees, contractors and volunteers (**Workers**) are responsible for understanding and following it. The person named against each step in section 7 is responsible for carrying out that step.

This policy should be read alongside the related documents listed in section 10 and the corresponding procedures in the Policy Register.

2. Our commitments

[] is committed to ensuring that:

- a complaints management and resolution system is maintained that follows procedural fairness and natural justice and complies with the NDIS (Complaints Management and Resolution) Rules 2018;
- every client knows about and can easily access the complaints system, and is told how to complain — including avenues outside [] — and of their right to use an advocate;
- complaints and feedback from any person are welcomed, acknowledged, respected and well managed, with no adverse consequences for raising them;
- clients and their families, carers, representatives and advocates are encouraged and supported to give feedback, pay compliments or raise concerns;
- all feedback and complaints are handled promptly, fairly and effectively, with a satisfactory resolution within a reasonable timeframe;
- we act on what we learn to improve our services;
- the system is reviewed at least annually, including seeking clients' views on how accessible it is; and
- all Workers are aware of, trained in, and comply with these procedures.

3. Who can make a complaint

Any client, family member, carer, advocate, Worker, government agency, stakeholder or member of the public may make a complaint to or about [] or any of its Workers.

A complaint can be made anonymously. To complain anonymously you can:

- a. call [] and say that you wish to make an anonymous complaint (we will not ask you to identify yourself); or
- b. fill out a Feedback and Complaints Form, leave out your name and any details that could identify you, and post it to [].

4. How to make a complaint

4.1 To []

You can make a complaint:

- in person to the Principal or any Worker;
- by email to [];
- by post to []; or
- by phone on [].

The Principal receives email and postal complaints and manages their resolution under section 6. Where a complaint is received verbally or in any form other than the Feedback and Complaints Form, the Worker who receives it will offer to help the complainant record it on that form.

4.2 To the NDIS Commission

A person can contact the NDIS Quality and Safeguards Commission at any time — before, during or after raising a complaint with us:

- Phone **1800 035 544** (free from landlines) or TTY **133 677**; interpreters can be arranged
- National Relay Service, then ask for 1800 035 544
- Online at **ndiscommission.gov.au/about/complaints**

The NDIS Commission can take complaints about supports or services that were not provided in a safe and respectful way, or were not delivered to an appropriate standard. Complaints to the Commission can also be made anonymously.

5. Support and assistance

All Workers are responsible for making sure any person who wishes to make — or has made — a complaint is properly supported. This includes:

- giving accessible information about how to complain, including the Feedback and Complaints Summary;
- providing a safe environment to complain or give negative feedback without fear of retribution or loss of service;
- treating every complainant with respect and recognising the complaint matters to them;
- keeping the complaint confidential in line with section 8;
- helping an advocate, representative or support person take part if the complainant wants that;
- explaining how a complaint can be raised with the NDIS Commission and helping the person do so;

- acknowledging, assessing and resolving the matter fairly, efficiently and with as little formality as proper consideration allows;
- taking corrective action where a serious risk is identified;
- keeping the parties informed of progress;
- making sure feedback and complaints data informs training and service planning; and
- reviewing and continually improving the system.

Protection for Workers. Workers are supported to report incidents and complaints and face no negative consequences for doing so. A Worker may make a complaint on behalf of a person, parent, guardian or child, either to [] or directly to the NDIS Commission.

6. Who manages complaints

The person who manages a complaint (the **Complaint Manager**) depends on who the complaint is about:

IF THE COMPLAINT IS ABOUT...	IT IS NORMALLY MANAGED BY...
a Worker other than the Principal	the Principal — unless the Principal decides an External Complaint Manager should manage it
the Principal	another Senior Staff Member; or, if there is none or it would be inappropriate, an External Complaint Manager

More than one person may act as Complaint Manager for organisational reasons or to avoid a conflict of interest or the appearance of bias. If the complainant is not satisfied with the outcome under section 7, they may request a further review by an External Complaint Manager who has not previously acted on the complaint; that person follows the same process.

7. The complaints process

The Complaint Manager will use all reasonable endeavours to complete the process below (the **Complaints Process**) within **21 days**, keeping the complainant updated on progress and any delays. Individual steps may be tailored to each complaint, subject to legislative requirements. Procedural fairness must be afforded to any person (including a Worker) whose rights or interests may be adversely affected — see the Procedural Fairness Considerations document.

STEP	RESPONSIBILITY
1. Receive the complaint. Listen genuinely; make the person comfortable; acknowledge the impact; thank them; take detailed notes (including whether the complaint is about identifiable Workers); offer help to put a verbal complaint in writing on the Feedback and Complaints Form; ask whether they want a support person or advocate involved. Any Worker who receives a complaint must immediately pass all information to the Principal (or, if it concerns the Principal, to the Complaint Manager).	Recipient of complaint · Principal · KMP · Complaint Manager
2. Record it. Register the complaint in the complaints register and update the record at each material step.	Principal · KMP · Complaint Manager

STEP	RESPONSIBILITY
3. Acknowledge it within 3 days. Choose an appropriate medium; confirm verbal acknowledgements in writing; indicate a timeframe for discussion, investigation and resolution; arrange for any advocate or representative to be involved.	Principal · KMP · Complaint Manager
4. Assess it. Confirm the issues are within []'s control; identify the outcome sought; consider seriousness, urgency, health and safety risks, whether identifiable Workers are involved, whether confidentiality can be maintained while affording procedural fairness, whether an investigation is needed, and the options for resolution. Refer to the Assessment, Investigation and Resolution Considerations document.	Principal · KMP · Complaint Manager
5. Discuss it. Arrange a suitable time and medium; listen without interrupting; ask what a good outcome looks like; explain the next steps; where a Worker's conduct is in question, give them a reasonable opportunity to be heard and afford procedural fairness.	Principal · KMP · Complaint Manager
6. Investigate (if required). Explain whether an investigation will occur; gather information; where the complaint concerns an identifiable Worker or a person's rights may be adversely affected, an investigation must occur and the affected person must be given a fair opportunity to respond before any adverse action. Inform the complainant in writing within 10 days of what is being done and the expected timeframe.	Principal · KMP · Complaint Manager
7. Take action. Make a decision based soundly on the facts raised during the process; before any adverse finding against a Worker, give them a reasonable opportunity to comment; inform the complainant of the outcome, the reasons, and the remedy proposed; arrange an apology where one is in order.	Principal · KMP · Complaint Manager
8. Offer a review. Tell the complainant that if they are not satisfied they can seek a review by an External Complaint Manager, who follows the same process.	Principal · KMP · External Complaint Manager
9. Refer to the NDIS Commission. If the complainant remains dissatisfied after a review, refer them to the NDIS Commission and provide information and support to complain externally, including to the Feedback and Complaints Summary and the Commission's website.	Principal · KMP
10. Train Workers. All Workers are trained in receiving complaints, the NDIS Code of Conduct and the NDIS Worker Orientation Module at induction and through refreshers. Complaint Managers receive additional training in complaints management and resolution, serious incident investigation and procedural fairness.	Principal · KMP

8. Privacy and confidentiality

[] takes reasonable steps to keep information provided in a complaint confidential, disclosing it only where required by law or otherwise appropriate — for example to the people directly involved in the Complaints Process, to a legal or professional adviser, where reasonably required to investigate the complaint properly, or to the NDIS Commission or police.

9. Records and continuous improvement

- Complaints are recorded in the complaints register and kept for at least **seven years**. Each entry records the complainant and nature of the complaint, the date lodged, action taken, date and reason for the decision, whether the complainant was notified of the outcome, and their response.
- Copies of correspondence are kept on the relevant client's file. The register and files are confidential and access is restricted to the Principal, KMP and any Complaint Manager.
- A statistical summary is maintained and reviewed at least annually and reported to [redacted]. Learnings are used to inform training (on an anonymous basis) and service delivery.
- This policy, the system and the register are reviewed and evaluated by the Principal and KMP at least annually, including a review of client and Worker feedback on accessibility and effectiveness, and a continuous improvement plan.

10. Definitions

[redacted]

[redacted], ABN [redacted].

Client

A client of [redacted], including an NDIS participant.

Complaint

An expression of dissatisfaction with a support or service, including how a previous complaint was handled, for which a response or resolution is expected.

Complainant

An employee, client, advocate, entity, member of the public or other person who expresses dissatisfaction about [redacted], to the organisation or to an external body.

Complaint Manager

The person who manages the process and resolution of a complaint under section 6.

External Complaint Manager

A person determined by the Principal and KMP who meets the criteria in the Criteria for Complaint Manager or Incident Manager document.

Key Management Personnel (KMP)

[redacted], and other key management personnel involved in [redacted] from time to time.

Principal

[redacted].

Senior Staff Member

Any senior member of staff or KMP other than the Principal.

Worker

A permanent, fixed-term or casual member of staff, a contractor or a volunteer engaged by [redacted], including the Principal and KMP.

11. Related documents and approval

Related documents: Feedback and Complaints Form · Feedback and Complaints Summary · Criteria for Complaint Manager or Incident Manager · Procedural Fairness Considerations · Assessment, Investigation

and Resolution Considerations · Feedback and Compliments Register · Complaints Register · Incident Management and Reporting Policy · Continuous Improvement Register · Policy Register · Legislation Register.

Legislation and rules: as set out in the Legislation Register, including the NDIS Act 2013, the NDIS (Complaints Management and Resolution) Rules 2018 and the NDIS (Procedural Fairness) Guidelines 2018.

If any part of this policy is inconsistent with applicable law, it is taken to be amended only to the extent needed to comply.

Approved by	
Approval date	
Next scheduled review	
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